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Provision of April 10, 2025

Register of Provisions

n. 228 of April 10

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by

Prof. Pasquale Stanzone, President, Prof.

Ginevra Cerrina Feroni, Vice President, Dr.

Agostino Ghiglia and Attorney Guido Scorza, Members, and

Dr. Claudio Filippi - Acting Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament

and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC

(General Data Protection Regulation, hereinafter "Regulation");

HAVING REGARD TO the Code on the protection of personal data (Legislative Decree No. 196 of June 30, 2003), as amended by Legislative Decree No. 101 of August 10, 2018, containing provisions for the adaptation of the national legal system to the aforementioned Regulation (hereinafter "Code");

HAVING REGARD TO Guidelines 07/2020 on the "concepts of data controller and data processor under the GDPR," version 2.0, adopted by the European Data Protection Board on July 7, 2021 (hereinafter also "Guidelines 07/2020")

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary General pursuant to Article 15 of the Guarantor's Regulation No. 1/2000;

REPORTING Dr. Agostino Ghiglia;

PREAMBLE

1. THE INSTRUCTIONAL ACTIVITY CARRIED OUT

The Guarantor, in exercising the powers of verification and control under Articles 157 and 158 of the Code, has conducted some inspection activities in conjunction with the Special Unit for Privacy Protection and Technological Fraud of the Guardia di Finanza, following a complaint received by the same Unit from a reporter of the television program "Striscia la notizia," Mr. XX.

In summary, the complaint reported a phenomenon already known to the Authority, namely the activities of abusive call centers (lacking formal engagement from clients and not registered with the Register of Communication Operators – ROC – established with the Authority for Guarantees in Communications – AGCOM) in possession of lists of individuals to be contacted by phone to propose the activation of telephone or energy services (gas and electricity), including through the switch from one provider to another.

In particular, based on information received from a former call center operator, the complaint denounced the unfair practices for procuring contracts in favor of Acea Energia S.p.A. (hereinafter also "Acea" or "Acea Energia" or the "Company") mainly carried out by the company M.G. Company s.r.l., with its legal headquarters in Fiumicino and operational offices in Rome, Fiumicino, Ladispoli, and Terracina.

M.G. Company was not formally included in Acea's commercial chain but relied on an agency directly contracted with Acea, the individual firm Stefanelli Federica (hereinafter, "Stefanelli" or the "firm"). To have potential customers sign contracts for electricity and gas supplies, it used the following operational scheme:

- a) use of lists with data of users who had recently switched from one electricity and/or gas provider to another (so-called "switch-out" lists);
- b) presenting non-existent technical issues in the switch from the "outgoing" provider to the "incoming" provider to overcome distrust and induce the contacted individuals to activate a supply with Acea, threatening the non-existent risk of receiving double billing from the two companies (the deactivated one and the new one being activated) with consequent economic damages for the customer;

c) presenting the solution: the call center operator would then present the customer with the solution of a “technical return” to Acea “for the time necessary to resolve the issue and align the supplies.” This return would occur under extremely advantageous tariff conditions (with a 40% discount) due to the inconveniences suffered;

d) sending a door-to-door agent for the signing of the contract proposal: once the potential customer was convinced to accept the proposed solution, the call center operator would set an appointment with what was referred to as an “Acea representative.” This representative would then go to the customer's home, not before having received via WhatsApp from the operator the audio file of the telephone conversations conducted, and there he would have the customer sign a new contract with Acea. The sending of the audio file was intended to inform the runner (i.e., the door-to-door salesperson) of the fictitious arguments used to convince the potential customer in order to adopt more credible discussions during the home visit.

In other words, the contracts, resulting from illicit promotional telephone contacts made by M.G. Company, during which misleading information was conveyed and often with aggressive and intimidating tones, flowed into Acea through the Individual Firm Stefanelli Federica, making such contracts appear as if they were made within the framework of ordinary door-to-door promotions and thus attempting to restore, with this operation, an apparent legal framework to the overall initiative, fundamentally tainted by the illicit traffic.

switch-out lists.

Upon receiving the complaint, the Financial Police conducted further investigations by consulting the databases used by the Corps, acquiring information from open sources, and conducting site visits. Based on the findings presented by the Financial Police, and considering that the activities of contract procurement, as illustrated in the complaint, were likely attributable to the phenomenon of aggressive telemarketing, the Authority ordered the conduct of inspection checks against the following subjects (inspection activities carried out simultaneously on March 26, 2024, by personnel from the Financial Police and the Authority):

- 1) M.G. Company s.r.l., at its registered office in Fiumicino (via dei Delfini 1, at the store under the name “Energia e non solo...”) and at its operational offices in Latina (piazza dell’Agorà, premises under the name M.G. Company s.r.l.), Terracina (piazza Gregorio Antonelli 14/16) and Ladispoli (via delle Rose 12-14-16);
- 2) Diemme Group of Di Vico Luigi, at the store under the name “Energia e non solo...” located in Rome, via Carlo Zucchi n. 13/15, whose premises are owned by the company Elanim s.r.l., whose sole partner is Mr. Di Vico Luigi, premises that are reported to be rented to M.G. Company s.r.l., which in turn has granted use to Diemme Group;
- 3) Individual Company Stefanelli Federica, with tax domicile in Terracina and place of business in Fiumicino, via Brunelleschi 47, a company that is currently reported as no longer operational;
- 4) M&M; s.r.l.s., with its registered and operational office in Terracina, piazza Gregorio Antonelli 14/16, also the operational office of M.G. Company s.r.l.;
- 5) Individual Company XX, in the offices of Turin, which were not found to be operational: XX was reported to be operationally linked to both M.G. Company s.r.l. and Di Vico Luigi, from whom it received remuneration in the context of the activity of “business procurer without prevalence”;
- 6) Acea Energia S.p.A., at its registered office in piazzale Ostiense n. 2, Rome.

Based on the findings that emerged during the activities on March 26, 2024, the Authority ordered further investigations at the offices of Fer-Energy Call s.r.l., as this company was found to operate at the Ladispoli office (via delle Rose 12-14-16), where there was also a call center of M.G. Company s.r.l., and of Fer-Energy s.r.l. The inspection activities against these additional companies took place on March 29, 2024, respectively, at the offices in Rome, viale Palmiro Togliatti n. 1613, and in Civitavecchia, via delle Azalee snc.

From all the inspection activities, it was possible to acquire a significant amount of information and documents, which were made available to the Authority by the Financial Police with notes acquired in the records and registered on April 19, 2024, and May 29, 2024.

The Office requested additional information from Acea (see prot. n. 107799/24 of September 13, 2024, responded to by Acea with prot. n. 225799/24 of October 4, 2024), focusing on the relationships with

M.G. Company, with its legal representatives or with employees or collaborators of this company, also requesting to provide the contract proposals uploaded to Acea's systems by two operators, whose names emerged during the inspections at M.G. Company.

As a result of the investigative activities indicated, limited to Acea's position, the Authority proceeded to notify the Company of the initiation of the procedure pursuant to Article 166, paragraph 5 of the Code; the Company, for its part, first requested and obtained access to the investigative records, and subsequently submitted its defensive briefs, further illustrating its position during the hearing held on March 4, 2025.

2. THE ALLEGATION OF VIOLATIONS

As mentioned, the Office sent Acea the notice of initiation of the procedure pursuant to Article 166, paragraph 5 of the Code (prot. 8687/25 of January 23, 2025), which is hereby fully referenced, with which it contested the possible violation of Articles 5, paragraph 1, letter a), 6, 7, 13, 24, 25, 28, and 32 of the Regulation and Article 130 of the Code in relation to the processing of personal data carried out by the then D.I. Stefanelli Federica and by M.G. Company on behalf of Acea and the failure to adopt adequate security and organizational measures.

This is due to the fact that the lack of controls over the data controller and its commercial chain, as well as the inadequacy of the security measures adopted, had allowed the execution, for a long time, of unwanted promotional calls, using data of illicit origin, without any consent from the interested parties who, unaware of any information regarding the processing, also suffered potential economic damages resulting from the distortion of their contractual will.

Furthermore, the Office analyzed, on a sample basis, the contact lists unlawfully acquired at M.G. Company and found among them numerous names present in the documentation produced by Acea in October 2024 relating to the contract proposals recorded in its business systems.

With reference to the relationship with Individual Company Stefanelli Federica, the absence of adequate controls by Acea over the structure of the business and the organization of commercial activities was also highlighted, controls that should have been aimed at verifying that an agency guaranteeing a volume of contracts equal to just under 10% of Acea's door-to-door business volume did not achieve such results by engaging in conduct contrary to the instructions received, also availing itself of the commercial support of unauthorized third parties.

Acea.

Specifically, the following violations have been contested:

a) Articles 5, paragraph 1, letter a), 6, 7, and 13 of the Regulation, as well as Article 130 of the Code, for having allowed promotional telephone contacts to be made using lists of personal data acquired without specific consent and without providing prior information, for which the lawful methods of data collection and consent acquisition for commercial and promotional purposes were not proven. It should be noted that the awareness attributed to Acea was, in fact, framed as knowledge of certain circumstances by the head of the Mass Market Sales Unit of the company, Ms. XX, as represented and described in the defense phase by M.G. Company, against which the Office had initiated a specific procedure;

b) Articles 5, paragraph 1, letter a) and 28 of the Regulation, for having factually entrusted M.G. Company s.r.l. with the processing of data of contracted customers, in the absence of a regular designation as data processor or sub-processor;

c) Articles 5, paragraph 1, letter f) and 32 of the Regulation, for having allowed employees of M.G. Company to access the IT systems of Acea Energia S.p.A. in the absence of the designations indicated in the previous point;

d) Articles 24 and 25 of the Regulation, for having failed to implement organizational measures, checks, and controls, suitable to verify that the marketing activities carried out by the Individual Company Stefanelli Federica, also due to the number of contracts signed, were conducted in compliance with the "door-to-door" sales mandate and with the current regulations on the protection of personal data.

3. ACEA'S DEFENSES

The Company, after accessing the documentation in the records for defensive purposes, has

submitted its own memoranda (prot. nos. 23935/25 and 24074/25 of February 24, 2025), which are hereby fully referenced, observing the following summarized points:

- Regarding the alleged awareness of Ms. XX (Head of the Mass Market Sales Unit) concerning the use of switch-out lists by M.G. Company, the Company submitted a statement from her to clarify the content of the audio reported by the Office in the notice of violation. On this point, Ms. XX denied being aware of the use of unauthorized lists by M.G. Company/D.I. Stefanelli, specifying that “in the reported conversation the term ‘lists’ refers to contracts that have gone KO from the distributor after contracting with Acea Energia” for which a new processing was requested to avoid losing the related commissions;
- Regarding the alleged awareness of Ms. XX concerning the commercial activities carried out by Ms. XX, the cited statement submitted reveals that Ms. XX clarified that she provided Ms. XX (identified as administrative support of D.I. Stefanelli) with suggestions regarding the so-called Commissioning policies, that is, the methods of collecting commissions, denying that the indications had a commercial nature towards end customers. The same statement also contains clarifications regarding the introduction of a maximum production limit for each agency, called “CAP,” and the fact that “the Stefanelli agency expressed dissatisfaction with its assigned CAP, which was lower than the historical production.” Ms. XX, to remedy “this dissatisfaction, communicated that compared to the original ‘cap’ it had been raised to +400 quarterly contracts, lowering it from the ‘cap’ of another structure.” In light of the clarifications provided, Acea denied that, in the conversations contained in the audio files, its employee intended to provide indications related to commercial activities and also emphasized that “following a further detailed internal verification, it emerged that the said number for the year 2022 is not equal to 17,000 supply points but to 11,585 supply points”;
- Regarding the “factually entrusting M.G. Company s.r.l. with the processing of data of contracted customers, in the absence of a regular designation as data processor or sub-processor” (Articles 5, paragraph 1, letter a) and 28 of the Regulation), Acea stated that it was not aware of sub-processors of the Individual Company Federica Stefanelli, designated as Data Processor, as she had not declared their presence in the questionnaire attached to the designation act. Furthermore, “the undersigned clarifies that the absence of specific designations as data processors or sub-processors in relation to Ms. XX and Ms. XX is due to the fact that they were, as far as the undersigned is aware, part of the administrative staff of D.I. Stefanelli, which should have proceeded to designate Ms. XX as persons in charge of processing, pursuant to Article 29 of the Regulation, and not as sub-processors.” In the defenses submitted, therefore, Acea argued that D.I. Stefanelli acted independently, and without due communication, in using personnel from M.G. Company to carry out the activities subject to the mandate and, therefore, “not being informed about the presence of a sub-processor, it was not in a position to intervene preventively as it was entirely external and devoid of any power to influence the employment of employees/collaborators of D.I. Stefanelli for the execution of the labor agreements, as well as on the actual activities carried out by them, not in accordance with what was stipulated between Acea Energia and D.I. Stefanelli”;
- on “having allowed employees of M.G. Company to access the IT systems of Acea Energia in the absence of the designations indicated in the previous point” (Articles 5, paragraph 1, letter f) and 32 of the Regulation), Acea described the procedures for assigning credentials to runners associated with its agencies, specifying that for each agency the credentials are differentiated between back office credentials and runner credentials. “Specifically, for the paper door-to-door, the runners do not have access credentials to the XX system and the Contract Proposals (hereinafter also “PdC”) are uploaded by back office users assigned to personnel of the same agency; on the contrary, for the digital door-to-door process, runners are assigned access credentials to the XX since the uploading is done by them during the contract proposal phase; there are also some figures in the company who have a user account enabled for both uploading digital PdC and uploading paper PdC in back office.” Furthermore, after reporting the procedures established for creating a user profile and to prevent unauthorized use, Acea concluded by stating that “to the best of the knowledge of the Writer, those who operated on behalf of D.I. Stefanelli handled personal data as data processors pursuant to Article 29 of the Regulation of D.I. Stefanelli. It follows that the credentials were never delivered by Acea Energia to M.G. Company, but rather to Stefanelli”;

- on having failed to implement organizational measures, checks, and controls, suitable for verifying that the marketing activities carried out by the individual company Stefanelli Federica, also due to the number of contracts signed, were conducted in adherence to the “door-to-door” sales mandate and to the current regulations on personal data protection, thus not relying on telemarketing and teleselling (Articles 24 and 25 of the Regulation), Acea indicated all the checks carried out for the evaluation of D.I. Stefanelli, specifying that, in relation to the “telemarketing” activities carried out covertly by this agency, the Company did not perform any checks as the activity was not the subject of the mandate stipulated between the parties. Finally, in the defense briefs and during the hearing, the Company illustrated the corrective measures implemented after the inspection in March 2024, specifying the planned activities that had not yet been completed as well as the planned auditing program. In particular, Acea first recalled that the promotion and sale of its services are primarily carried out through the door-to-door channel, having long since excluded telemarketing and teleselling activities on prospects (such activities have remained for the promotion of offers only towards the customer base or towards users who have requested a follow-up through web forms). Furthermore, Acea described the following guarantee measures subsequently adopted:

- a) from October 2024, automated and precise control (previously it was random) on the geolocation of the sales agent at the time of creating the PdC (contract proposal) to verify its compliance with the address of the contracted customer;
- b) from July 1, 2024, automatic blocking in case of multi-session access with the same credentials to the XX company system;
- c) from July 1, 2024, automatic blocking in the systems in case of activation of contracts for users over seventy-five years old;
- d) from July 1, 2024, introduction of access to the XX system with multi-factor authentication;
- e) from July 11, 2024, automatic monitoring of all digital contracts signed through the door-to-door channel, imposing a threshold of 5 PdC per day per agent, in order to identify productivity levels that are inconsistent with what is normally expected;
- f) from July 11, 2024, introduction of the process for managing the records of agents in order to automate some checks on the actions of each individual agent to highlight any behaviors not corresponding to the instructions given to the data processors and to block the coding of authorizations to agents who have already ceased for malpractice.

Lastly, the Company recalled that each PdC originating from the door-to-door channel is followed by a quality call, made by an Acea call center, to verify the actual willingness of the customer and to confirm the correct actions of the agent; regarding this last aspect, the Company specified that during the control call, the customer was asked to confirm that the agent had physically visited their home and, more recently, a specific question was also introduced to verify that the home visit had not been preceded by an unauthorized phone contact.

4. EVALUATIONS OF THE AUTHORITY

4.1. General Overview

Before delving into the specifics of the individual violations established, it seems appropriate to outline a brief overview of the system brought to light by the Office with the collaboration of the Guardia di Finanza. In particular, the complex of the assessments indicated leads to considering the activities carried out by the various subjects referred to in the previous point 1 and by the numerous collaborators revolving around them, as unambiguously directed towards achieving a massive procurement of service supply contracts.

illegal methods. These contracts have largely been directed towards the energy company Acea Energia S.p.A., which was able to rely on the direct collaboration of M.G. Company from 2020 to 2021. Following the termination of the formal relationship with M.G. Company in March 2021, the activities of procuring contracts on behalf of Acea Energia continued with the Individual Company Stefanelli Federica (whose owner was a collaborator of M.G. Company from 2019 to 2022), which, between 2022 and 2024, transmitted to the energy company a volume of contracts relating to approximately 27,000 supply points, earning over two million euros in commissions.

It should be noted that, despite the succession of different parties in the formal collaboration with Acea

Energia, the inspection findings have revealed the substantial continuity of the contract procurement activities in favor of Acea Energia, within a system that had its organizational center in the offices of M.G. Company. Furthermore, although the mandate given to D.I. Stefanelli was formally limited to "door-to-door," the actual operations through which contracts for Acea were concluded fell within a teleselling activity (moreover, illegal and using fraudulent methods).

As mentioned, Acea formally terminated the collaboration with M.G. Company in March 2021 and, subsequently in August 2022, entrusted the same mandate (previously held by M.G. Company) to D.I. Federica Stefanelli, a former collaborator of M.G. Company, who utilized the personnel and call centers of M.G. Company for the commercial activities of concluding contract proposals on behalf of Acea.

In this context, the Authority, based on the specific defensive observations, is primarily called upon to evaluate whether Acea's claimed ignorance of a factual state, which benefited from the illicit treatment carried out on a large scale through fraudulent means by its partners, and which is a consequence of its own omissions, is in any way justifiable or whether this situation, given the characteristics of the specific case, should instead be considered inexcusable and, therefore, relevant in terms of liability under the data protection regulations.

In other words, it is necessary first to assess whether the unlawfulness of the conduct carried out by the Stefanelli company and, through it, by M.G. Company—allegedly executed in violation of the instructions given by Acea as well as what was contractually agreed—can also be attributed to Acea itself, not only due to the economic benefit obtained but also considering the adequacy of the control measures adopted by the client to prevent, as far as known at the state of the art and based on the expected professional diligence, the occurrence of conduct of the type carried out in the specific case.

Moreover, in the particular context of energy supplies, characterized by the presence of a large "underbrush" of agencies operating illegally by contacting millions of customers multiple times a day and then attempting to remedy this detrimental practice by making the related contracts appear as having been executed through door-to-door activities, the question that must be posed is whether a major player like Acea Energia was aware of this massive phenomenon, which is constantly addressed in debates, parliamentary initiatives, and also in the activities of at least four independent administrative authorities (Garante, AGCOM, AGCM, ARERA), and whether it had developed the necessary "antibodies" to activate precisely in the presence of suspicious practices and business volumes.

The answer that can be derived, even before the analytical examination of the specific allegations, is that Acea Energia, while aware of the risks inherent in a widespread promotional activity carried out through a vast network of external agencies, was unable to intercept a phenomenon of enormous dimensions whose profitable outcomes flowed into its corporate systems, a phenomenon that, it should be remembered, originated from the illicit acquisition of switch-out lists, continued with the massive telephone contact of tens of thousands of customers who were threatened with economic damage if they did not adhere to the offers, and concluded with the realization of nearly 30,000 supply contracts in favor of Acea within a short span of a year and a half, formally channeled through an individual company that was reported to have only one employee.

4.2. Fault "in eligendo" and "in vigilando"

As anticipated, the defensive arguments presented by Acea Energia do not allow for the exclusion of its liability regarding the contested violations for the following reasons, to be considered together with the observations already expressed in the referenced notice of contestation.

The entire defensive line of Acea revolves around the lack of knowledge of M.G. Company's involvement in the data processing, due to the circumstance that D.I. Stefanelli had not correctly indicated the company as its sub-responsible; this situation would have led Acea to believe that all collaborators of D.I. Stefanelli, including the legal representative of M.G. Company and 16 of its employees and collaborators, were included in the structure of the same agency and, therefore, fell

within the operation of Article 29 of the Regulation.

Furthermore, Acea also declared that it was unaware of the teleselling activities carried out in...

****to be for the conclusion of the contract proposals uploaded by D.I. Stefanelli.****

For the violations that can be traced back to this profile, Acea, in its submissions, stated that “it is evident that Acea Energia was in no way aware of the existence of a sub-responsible of D.I. Stefanelli as it was never communicated by the company either prior to the signing of the contract or during its execution. To confirm this, the Writer clarifies that the absence of specific designations as responsible or sub-responsible for the processing in relation to Ms. XX and XX is due to the fact that they were, to the knowledge of the Writer, part of the administrative staff of D.I. Stefanelli, which should have proceeded to designate XX as the subjects responsible for the processing, pursuant to Article 29 of the Regulation, and not as sub-responsibles.”

Therefore, from a systematic point of view, it is deemed appropriate to address this issue (the excusability of any “lack of knowledge” of the conduct of its partners) before proceeding to specific evaluations regarding the findings of the investigation, which also include the extensive documentation regarding the direct relationships between Acea and M.G. Company.

First of all, it is necessary to assess the adequacy of the checks carried out by Acea to reach the conviction that D.I. Stefanelli presented those sufficient guarantees referred to in Article 28 of the Regulation.

In this regard, the Company stated that “By way of example, Acea Energia carries out, in line with its internal procedures, a check of honorability on potential BP as well as on the relevant administrators/shareholders using a platform provided by Cerved, which returns a synthetic data with evidence of any critical elements (so-called red flags) based on the information collected in terms of the type of corporate structure, presence of politically exposed persons, presence of any proceedings or convictions against the BP or its representatives. In this regard, it should be noted that, before proceeding to contract with the Stefanelli Company (which took place in August 2022), Acea Energia carried out the aforementioned check and the platform did not return any evidence as per the reports archived at the Writer’s Company.”

Yet, from what has emerged, among the documentation collected and evaluated by Acea, the chamber of commerce registration of its agent is missing, from which it could have easily been learned that, in relation to the years 2022-2024, D.I. Stefanelli had employed only 1 staff member in the activity, namely the owner Stefanelli herself. Furthermore, the checks that Acea declared to carry out are solely aimed at ascertaining a generic compliance with honorability requirements and the absence of prior crimes of the contractual counterparty; aspects that certainly have relevance in the selection of any supplier but do not provide specific information regarding the suitability of the partner to assume the role of responsible for the specific processing carried out.

On this point, it is useful to recall the Guidelines 07/2020, according to which “94. The data controller has the duty to employ ‘only data processors who provide sufficient guarantees to implement appropriate technical and organizational measures,’ so that the processing meets the requirements of the GDPR, including regarding its security, and ensures the protection of the rights of the data subjects. The data controller is therefore responsible for assessing the adequacy of the guarantees provided by the data processor and should be able to demonstrate that it has seriously considered all the elements referred to in the GDPR.

95. The guarantees ‘provided’ by the data processor are those that the data processor can satisfactorily demonstrate to the data controller, as these are the only ones that can actually be taken into consideration by said controller in evaluating compliance with its obligations. Often this will require an exchange of relevant documentation (for example, privacy policy, service provision conditions, record of processing activities, log management mechanisms, information security policy, external audit reports on data protection, and recognized international certifications, such as the ISO 27000 series). [...]

97. The data controller should take into account the following elements in order to assess the adequacy of the guarantees: specialized knowledge (for example, technical expertise regarding security measures and data breaches), reliability, and resources of the data processor.”

From the evidence collected, it emerged, however, that D.I. Federica Stefanelli was essentially lacking a structure and its own resources to the extent that, to carry out the "door-to-door" commercial activity on behalf of Acea, it relied on collaborators and structures of M.G. Company, as evidenced by the assignments in place between the two companies from 2022 to 2024 and by the fact that 18 collaborators indicated to Acea as its own were, in reality, employees, collaborators, and even legal representatives of M.G. Company.

Acea thus entrusted the processing of personal data of its customers to D.I. Stefanelli, which, due to its size and experience in the sector, did not present sufficient guarantees to implement appropriate technical and organizational measures to ensure compliance with the protections prescribed by the Regulation; nor, moreover, does it appear that Acea has...

****Audit Activities****

No audit activities were conducted on its partner, neither during the selection phase nor subsequently. Regarding the relationships with employees and collaborators of M.G. Company, Acea, in a note dated October 3, 2024, represented that it continued "to maintain commercial relationships with the following names [...] these are, in fact, runners/collaborators who, after working for MG Company s.r.l., operated as runners for the company Stefanelli Federica [...]".

The indicated names are 16, to which should be added those of Ms. XX and Ms. XX who, despite their respective roles as legal representatives, the first being the current legal representative and the second the previous legal representative of M.G. Company, according to Acea's assertions, should have engaged solely in "administrative activities (by way of example, invoicing invitations, application of penalties, etc.) and back office activities, as well as activities aimed at recruiting runners and in any case did not carry out sales activities" on behalf of the company Stefanelli.

On this point, it is first noted that Acea did not provide any evidence of the aforementioned, neither regarding the request of its agent nor, above all, regarding the merely administrative role of Ms. XX. During the hearing, Acea stated that "We knew instead that Stefanelli would make use of the sisters XX due to their experience and the lesser experience of Stefanelli itself, in a logic of tutoring, back-office activities, and administrative support. This was also plausible due to the constant use of Stefanelli's email and not those of MG Company."

Moreover, from the conversations between XX and Ms. XX, head of the Mass Market Sales Unit of Acea, conversations acquired in the records following the hearing of M.G. Company, it emerges that the representative of the aforementioned company had a decision-making role that went well beyond merely carrying out administrative activities for Stefanelli, being able to agree, in person, and obtain from XX: the expansion of the number of contracts that could be executed (so-called CAP); the commercial training of personnel; the intervention and the plausible "accommodation" on blocks caused by instant calls (calls to verify the presence of the door-to-door seller at the customer's home – see file "WhatsApp Audio 2024-12-05 at 14.36.26" in which XX reassures XX "now I have found a solution just...for yours and that's it" or see file "WhatsApp Audio 2024-12-05 at 14.29.15" in which XX addresses XX saying "I am also on the instant calls to cover your backs"); furthermore, from the file "WhatsApp Image 2024-12-05 at 15.15.42 (1)" it emerges that, in response to XX's complaints regarding the recognition of commissions, XX replied "You tell me. I advised you. Then if you don't want to go on anymore, that's another thing. I support you to the maximum more than necessary."

In light of such findings, which among other things reinforce the unsuitability of D.I. Stefanelli, in relation to what is provided for by Article 28 of the Regulation, it has emerged from the records that:

- As previously mentioned, from the company registration of D.I. Stefanelli, it has employed only 1 employee from 2022 to 2024, namely the owner of the company herself. This implies that all collaborators associated with the same sole proprietorship could only be external subjects to the same structure, whose actual classification should have been subject to specific checks by Acea;
- From the company registration of M.G. Company, Ms. XX was and is the legal representative of M.G. Company, thus her inclusion as a subordinate collaborator in the structure of D.I. Stefanelli does not seem to adhere to the documentary reality, considering the weight, in commercial terms and experience, of M.G. Company compared to D.I. Stefanelli and the fact that the two business entities

operated in the same context alternating in carrying out the same commercial activity.

Both circumstances were rather easy to verify with a simple consultation of the information available in the Business Register and with a preliminary audit at the legal headquarters of Stefanelli, but from Acea's statements, no such verification appears to have been conducted. In this specific case, moreover, Acea's prior knowledge of Ms. XX's role as legal representative of M.G. Company should have made any checks aimed at ensuring that no telemarketing activities were carried out on behalf of the sole proprietorship Stefanelli, and therefore of Acea, at M.G. Company, mandatory, and should have highlighted the need for verification of the actual business substance of the aforementioned sole proprietorship, also to ascertain whether XX and her sister XX, the previous owner of M.G. Company, were indeed mere collaborators of Ms. Stefanelli or held the role of hidden owner of the overall entrepreneurial activity.

It should indeed be clarified that M.G. Company and its legal representatives were well known to some business contacts at Acea who, due to their role, had established direct and prolonged contacts with them. Furthermore, from what emerged from the parallel investigation and the proceedings initiated against M.G. Company, the interaction between Acea's representative, Ms. XX, and the sisters XX, even during the contract with D.I. Stefanelli, was constant and extended beyond the mere working context.

Greater caution should have also been suggested by the well-known critical issues of the energy market and the same phenomenon of the so-called undergrowth as well as the use of illicit lists. Acea, based on what has been declared by Acea, the energy company was well aware of the situation to the extent that it even filed a complaint in 2021, specifically naming Ms. XX as a person knowledgeable about the indicated practice.

Based on the above considerations, it is evident that Acea's claimed unawareness regarding the improper practices in use at D.I. Stefanelli, also through M.G. Company, cannot be reasonably invoked, as the energy company had all the necessary knowledge elements to initiate a verification and control process concerning its partners aimed at ascertaining the actual nature of their activities, verifications and controls that, as emerged during the investigation, do not appear to have been implemented at the time of the events.

Based on the observations above, it is therefore possible to analyze the profiles of responsibility related to the individual allegations made in the initiation of the proceedings.

a) Articles 5, paragraph 1, letter a), 6, 7, and 13 of the Regulation, as well as Article 130 of the Code;

To affirm the existence of the violation mentioned, it must first be noted that there is undeniable external evidence that the commercial manager of Acea, Ms. XX, during her mandate with D.I. Stefanelli, conducted commercial training activities for personnel allegedly belonging to Stefanelli but, in fact, recruited by M.G. Company (among the materials on file - also provided to Acea during the defense phase - is, for example, the flyer of a training course organized in Pomezia on October 14, 2022, where the logo of M.G. Company appears alongside that of Acea Energia).

Furthermore, regarding the organization of said course, it was found that Ms. XX made specific requests to XX because "those from Turin also had to come down." From the inspections carried out, the collaborators from Turin are connected to another company in the so-called undergrowth identified specifically as Individual Company XX, operationally linked both to M.G. Company s.r.l. and to Diemme Group of Di Vico Luigi. From the content of the conversations recorded in the documents, it emerges that Ms. XX was aware of the subject matter of the conversation, having adhered to the requests of XX to also take into account the represented needs of "those from Turin."

It follows that, despite the formal termination of relations with M.G. Company, this company was, in fact - from the second half of 2022 to the spring of 2024 - fully active in procuring and concluding contracts on behalf of Acea, and this occurred without the energy company having adopted adequate security measures to intercept and detect such activity.

On the other hand, it is undeniable that the treatments carried out by the call centers of M.G. Company are attributable to the ownership of Acea and that these same treatments generated, between 2022 and 2024, contracts for approximately 27,000 supply points, guaranteeing commissions to the Stefanelli Company, paid by Acea, for over two million euros.

The operational modalities established involved, as mentioned, the use of "non-consented" lists and of presumably illicit origin, the failure to communicate the information to the interested parties, and the use of tricks to induce the interested parties to sign the supply contract with Acea, behaviors that M.G. Company was able to implement for two years precisely due to the substantial acquiescence of the energy company which, through the constant interaction of Ms. XX, provided explicit endorsement to all practices conducted personally by M.G. Company, up to the point, as demonstrated by the contents of the chats presented by M.G. Company, of intervening with external parties responsible for control activities through so-called instant calls, to unblock practices that were evidently deemed non-compliant.

It is worth specifying that the instant calls were conducted to prove that the supply contract was signed at the customer's home and thus in a door-to-door manner, while the intervention of Ms. XX casts a shadow over the procedure of actual control, given that a commercial sector official from Acea personally intervened with the external parties responsible for control.

In this context, Acea's passive approach, which limited itself to stating that D.I. Stefanelli had concealed the involvement of M.G. Company, represents a merely formalistic application of data protection that ultimately ends up derelicting the owner, and this is in total contrast with the principles of the Regulation and with the measures adopted by the Guarantor on the subject. The marketing activities carried out by third parties – and the related responsibility of the clients – have been the subject of so many and constant pronouncements by the Guarantor that they can now be considered consolidated, especially among large economic operators who use such channels massively. The Guarantor has repeatedly reminded that the entire framework of the Regulation is based on the accountability of the data controller. The latter, by acquiring in its systems the personal data of subjects who, after being contacted, have adhered to the proposed offers, should adopt measures of particular guarantee in order to prove that such contracts originated from contacts made in full compliance with the provisions on personal data protection, particularly those referred to in Articles 5, 6, and 7 of the Regulation relating to consent, as well as what is provided for in Article 130 of the Code.

According to the constant interpretation of this Authority, the subjects acting on behalf of

****a)**** The proponent, generating a legitimate reliance among the recipients of communications regarding the actual ownership of the promotional contact, are qualified as data controllers. This qualification concerning the legal relationships between the parties can also be deemed to exist in cases where the entity that materially makes the contact, while remaining unknown to the data controller, effectively establishes a contractual relationship similar to that in place with the directly contracted partners. This approach has been developed particularly with regard to the context of telephone and automated marketing, taking into account the high level of risk determined by the numerous illegalities generated by the lack of control over the supply chain, as established over years of verification activities. The same reasoning can, however, be applied to door-to-door promotional activities, which present critical issues, also well known to both the market and the supervisory authorities, issues that, as mentioned, largely stem from the fact that the activity at the customer's home is often preceded by illegal promotional telephone contacts. In this context, it is difficult to accept the justification of a client of the caliber of Acea Energia based solely on the alleged ignorance of behaviors that it was instead required to control, given that the illegalities emerging from this investigation should have been considered among the foreseeable circumstances: the "strengthening" of door-to-door results through preliminary and unauthorized telephone contacts is a behavior that has already emerged in the sector; such an eventuality should have been taken into account and avoided through ordinary means of controlling the results achieved by the agents, especially in cases where these were particularly distant from what was reasonably expected.

****b)**** Articles 5, paragraph 1, letter a) and 28 of the Regulation; Referring to the observations already

expressed in the section regarding fault “in eligendo” and “in vigilando,” it must be reiterated that the circumstance that Acea was unaware of the factual situation or that it was even convinced that Ms. XX were “in the administrative staff of D.I. Stefanelli” demonstrates that the organizational measures for the verifications required by Article 28 of the Regulation were not adequate, especially in the face of a rather widespread phenomenon such as the one under examination. This lack is compounded by the absence of an auditing plan for the companies designated as data controllers, as evidenced by the statements made by Acea during the inspection.

****c)**** Articles 24 and 25 of the Regulation; The circumstance that Acea did not know the actual circumstances of the data processing carried out on its behalf and the involvement of M.G. Company, moreover due to shortcomings attributable to it, does not absolve the Company of responsibility, which is required to adopt measures suitable to prevent such occurrences. Therefore, in light of the preparation of procedures and measures deemed by the Company to be suitable and adequate, non-compliant behaviors were realized in practice, carried out by subjects who, even if “unknown” to Acea, acted in its interest. In this regard, from a systematic perspective, it is necessary to reiterate that the regulatory provisions (Articles 24 and 25 of the Regulation) outline a precise framework of general responsibility resting on the data controller, not only in the sense of imposing on it the adoption of adequate and effective measures to ensure compliance with the regulations on personal data protection but also in the sense of requiring that the controller demonstrates, concretely and with evidentiary elements, the compliance of any processing activity it has carried out directly or that others have carried out on its behalf (see also Recital No. 74 of the Regulation). It is therefore necessary to provide evidence of overall assessments made on the characteristics of the processing, the risks associated with them, and the effectiveness and adequacy of the measures adopted on a case-by-case basis. Effectiveness and adequacy can only be tested and demonstrated through structured and systematic verification and audit mechanisms that, in this case and by Acea's own admission, had not been implemented. The rationale behind the aforementioned provisions lies in the necessity to ensure that the entirety of the obligations regarding personal data protection does not reduce to a mere paper assembly, as already mentioned above, and that the “supply chain” of responsibilities in the context of processing does not allow for undue “passing the buck” but is always ultimately attributable to the controller. The controller is, in fact, the primary engine of the complex mechanisms that determine the compatibility of the various activities carried out with the provisions of the Regulation and the Code aimed at allowing the data subject full control over their data and the complete exercise of their rights and freedoms. The principle of accountability, therefore, outlined both from a legal perspective (Article 5, paragraph 2 and Article 24) and in a more modern technological dimension (Article 25), entails overcoming an exclusively formalistic logic by imposing on the data controller the establishment of systematic verification mechanisms, both *ex ante* and *ex post*, for compliance with the regulations on personal data protection by all subjects involved in the processing chain that can be attributed to it or that can provide economic benefits to the controller.

M.G. Company in qualità di collaboratore della D.I. Stefanelli.

In light of the findings from the investigation conducted by the Authority, it is evident that specific elements related to the proper configuration of Acea's IT systems concerning security, which were subsequently adopted, could have been established to prevent unauthorized activities carried out by Ditta Stefanelli and M.G. Company (and potentially also by other parties) from resulting in the conclusion of supply contracts that were then transferred into the personal data assets of the energy company.

Acea has indeed stated that it enabled, as runners, 16 employees from M.G. Company on the assumption that they belonged to the structure of D.I. Stefanelli, without verifying whether these individuals were actually included in the corporate structure of the company and authorized to process personal data. It is also not evident that these individuals received specific training in data protection on behalf of Acea and for the correct use of its IT platforms. Two of these runners associated by Acea with D.I. Stefanelli not only worked at M.G. Company but also managed the call centers of two of the indicated company's locations and were responsible for concluding contracts on behalf of Acea,

operating as telesellers and then uploading the contract proposals onto Acea's systems dedicated to door-to-door sales. In particular, among the runners of D.I. Stefanelli - which Acea has recorded in its systems - were Mr. XX and Ms. XX. From the inspections conducted by the Financial Police and the Office at the premises of M.G. Company and D.I. Stefanelli, it emerged that:

- Mr. XX managed the call center in Latina of M.G. Company as a collaborator of D.I. Stefanelli Federica;

- Ms. XX managed the call center in Ladispoli of M.G. Company as a collaborator of D.I. Stefanelli. M.G. Company as a collaborator of the same M.G. Company. Furthermore, among the runners of D.I. Stefanelli was also Mr. XX, who, from the inspection activities conducted on March 26, 2024, at the offices of M.G. Company, was identified as the former manager of the call center in Ladispoli of M.G. Company.

Thus, Acea enabled the employees and collaborators of M.G. Company, considering them runners of D.I. Stefanelli, to access its systems despite the fact that they were operating for an entity (M.G. Company, precisely) that was not formally included in its commercial supply chain and, therefore, not authorized for access. Furthermore, it was verified that individual call center operators of M.G. Company (and not the runners) accessed Acea's systems with the same account issued by Acea to accredited subjects (for example, the account used by the various call center operators was that of XX, one of the runners of D.I. Stefanelli), and this was made possible also due to the absence, at the time of the facts, of access control measures and the prohibition of multi-session access with the same account, a circumstance also confirmed by Acea in its defense.

In addition to the above, during the inspection phase, another significant circumstance emerged that could indicate a method of contract conclusion different from door-to-door: in particular, by accessing Acea's systems and activating a simple query, it was found that one of the runners of D.I. Stefanelli had managed to conclude two contracts in six minutes (the first at 9:14, the second at 9:20 on March 26, 2024) in relation to two clients located more than 100 km apart, only to return shortly within a span of ten minutes to the Ladispoli office of M.G. Company, where the inspection activities were taking place. These temporal and geographical indications were not analyzed by Acea, nor were they flagged by the systems; conversely, an analysis of such elements could have allowed for the verification of the correctness of the treatments carried out by the runners and their compliance with the type of contract (teleselling or door-to-door) in place with the specific agency.

That said, the Authority can only welcome all the initiatives and implementations of control procedures that Acea indicated in its defenses and during the hearing (reported in the previous point 3), which, however, are all subsequent to the contested facts and, therefore, can constitute a valid mitigating factor in the assessment of the sanction to be imposed. However, it should be emphasized that, among those described, the only measure indicated by Acea and already in place since 2023 was that related to manual and sample comparison between the geolocation address of the location from which the contract proposal is uploaded and the client's location; however, this measure did not allow Acea to intercept some of the anomalies mentioned above and, in fact, it has been revised by the Company, which now conducts such checks in an automated manner.

5. CONCLUSIONS

Based on the above, Acea Energia S.p.A.'s responsibility for the following violations is deemed established:

- a) Articles 5, paragraph 1, letter a), 6, 7, and 13 of the Regulation, as well as Article 130 of the Code, for allowing third parties to make promotional telephone contacts, using lists of personal data acquired in the absence of specific consent and without providing prior information, lists for which the lawful methods of data collection and consent acquisition for commercial and promotional purposes were not proven;

- b) Articles 5, paragraph 1, letter a) and 28 of the Regulation, for having factually entrusted M.G. Company s.r.l. with the processing of the data of contracted clients, in the absence of a regular designation as data processor or sub-processor;

c) Articles 5, paragraph 1, letter f) and 32 of the Regulation, for having allowed employees of M.G. Company to access the IT systems of Acea Energia S.p.A. in the absence of the designations indicated in the previous point;

d) Articles 24 and 25 of the Regulation, for having failed to implement organizational measures, checks, and controls, suitable to verify that the marketing activities carried out by the Individual Company Stefanelli Federica, also due to the number of contracts signed, were conducted in adherence to the "door-to-door" sales mandate and with the current regulations on personal data protection, thus without the use of illicit telemarketing and teleselling tools.

Furthermore, it is worth making some considerations regarding a "system" that, from the inspections carried out by the Guardia di Finanza and subsequent investigative activities, has allowed for the delineation of an extremely serious and alarming picture in relation to the complex of activities that, ultimately, was fueled by the commissions paid by Acea itself. These activities were found to be carried out with a constant disregard for the provisions regarding personal data protection, so that the entire framework of the treatments carried out by the involved companies was entirely inadequate to allow the interested parties to exercise the necessary control over their data, thereby violating the fundamental principles of fairness and transparency established to protect any treatment. Moreover, the activities were found to be conducted in defiance of the provisions that allow for curbing the phenomenon.

the conclusion that Acea Energia has shown a willingness to cooperate in addressing the issues identified.

6. ORDER FOR THE APPLICATION OF ADMINISTRATIVE SANCTION

The violations indicated above necessitate the adoption of an order for the application of an administrative sanction, pursuant to Articles 166, paragraph 7, of the Code and 18 of Law No. 689/1981, for the application against Acea Energia of the administrative pecuniary sanction provided for by Article 83, paragraphs 3 and 5, of the Regulation (payment of an amount up to €20,000,000.00 or, for companies, up to 4% of the annual worldwide turnover of the previous financial year, if higher);

For the determination of the maximum applicable fine, reference must therefore be made to the turnover of Acea Energia, as derived from the latest available financial statement (December 31, 2023) in accordance with previous measures adopted by the Authority, and thus this maximum fine is determined, in the case at hand, to be €91,000,983,270.

For the determination of the amount of the sanction, it is necessary to take into account the elements indicated in Article 83, paragraph 2, of the Regulation;

In the case at hand, the following factors are relevant:

- the severity of the violations (Article 83, paragraph 2, letter a) of the Regulation), taking into account the subject matter and purposes of the data processed, related to the overall phenomenon of unwanted promotional contacts, regarding which the Authority has adopted, particularly in the last five years, numerous measures that have thoroughly examined the multiple critical elements, providing the holders with numerous indications to adapt the processing to current regulations and to mitigate the impact of nuisance calls on the affected parties; also considering the number of subjects involved (due to approximately 27,000 distribution points affected by the contracts conveyed by the Individual Company Stefanelli and by M.G. Company) and the duration of the illicit activities (from 2022 until March 2024, activities interrupted only as a result of the inspection activities carried out by the Authority);
- as an aggravating factor, the severely negligent nature of the violations, resulting from omissions carried out with awareness and intent that have effectively weakened the security measures and the system of controls and accountability of the various subjects operating in the sales network of Acea Energia, taking into account the level of professional diligence that could reasonably be expected from a holder of the caliber of Acea Energia (Article 83, paragraph 2, letter b) of the Regulation);
- as an aggravating factor, the degree of responsibility of the data controller (Article 83, paragraph 2, letter d) of the Regulation) due to the ineffectiveness of the technical and organizational measures,

which did not allow for the interception of the illicit activities carried out by the Company Stefanelli and by M.G. Company and which, in some cases, allowed for their consolidation, as well as due to the primary role that Acea Energia assumes in the Italian energy market;

- as a mitigating factor, the circumstance that Acea Energia has introduced, following the investigations that involved it, a significant series of measures (Article 83, paragraph 2, letter c) of the Regulation), which have affected the management phase of individual runners, cybersecurity, and the identification of the chain of responsibility from the first contact to the final contract;

- as a mitigating factor, the significant collaboration with the Authority, both during the inspection activities and in the continuation of the investigation and the proceedings, which leads to the conclusion that Acea Energia has shown a willingness to cooperate in addressing the issues identified.

****Consider favorably the commitment of the energy company to adopt effective future measures aimed at countering the phenomenon of unlawful promotional contacts (Article 83, paragraph 2, letter f) of the Regulation).****

Based on the complex of the elements mentioned above, and the principles of effectiveness, proportionality, and deterrence provided for in Article 83, paragraph 1, of the Regulation, and taking into account the necessary balance between the rights of the data subjects and the freedom of enterprise, also in order to limit the economic impact of the sanction on the organizational and functional needs of the Company, it is deemed appropriate to apply to Acea Energia the administrative sanction of a payment of three million euros (€3,000,000), equal to 3.26% of the maximum administrative fine and 0.13% of the annual turnover.

In the case at hand, it is considered that the accessory sanction of publication on the website of the Authority of this provision, as provided for in Article 166, paragraph 7 of the Code and Article 16 of the Regulation of the Authority No. 1/2019, should be applied, taking into account the particular severity of the violations and the disvalue of the conduct both with regard to the evasion of the regulations against unwanted promotional contacts, and concerning the number of subjects involved and the potential economic damage suffered by them.

Finally, the prerequisites of Article 17 of Regulation No. 1/2019 concerning internal procedures of external relevance, aimed at carrying out the tasks and exercising the powers delegated to the Authority, are met.

****ALL OF THE ABOVE CONSIDERED, THE AUTHORITY****

pursuant to Article 57, paragraph 1, letters a) and h), of the Regulation, declares unlawful the processing described in the reasoning carried out by Acea Energia S.p.A., with registered office in Rome, Piazzale Ostiense No. 2, VAT No. 07305361003 and, consequently:

- a) orders Acea Energia, pursuant to Article 58, paragraph 2, letters d) and e) of the Regulation, to inform all data subjects, whose personal data have flowed into the Company's systems following the unlawful acquisitions by D.I. Stefanelli and M.G. Company s.r.l., of the outcomes of today's proceedings based on a text to be agreed with the Authority at the time of the application of this provision;

- b) orders Acea Energia, pursuant to Article 58, paragraph 2, letter d) of the Regulation, to adequately ensure that the agencies enter into contracts with any sub-agents that are fully compliant with the standard contract entered into between Acea Energia and the agencies themselves, in which the distribution of responsibilities in the processing of personal data is clearly stated as indicated by Article 28 of the Regulation;

- c) orders Acea Energia, pursuant to Article 157 of the Code, to communicate to the Authority, within thirty days from the notification of this provision, the initiatives undertaken in order to implement the imposed measures; any failure to comply with the provisions of this point may result in the application of the administrative pecuniary sanction provided for in Article 83, paragraph 5, of the Regulation.

****ORDERS****

pursuant to Article 58, paragraph 2, letter i), of the Regulation, Acea Energia S.p.A., represented by the legal representative pro tempore, with registered office in Rome, Piazzale Ostiense No. 2, Tax Code 07305361003, to pay the sum of three million euros (€3,000,000.00) as an administrative pecuniary sanction for the violations indicated in the reasoning; it is noted that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by paying, within 30 days, an amount equal to half of the imposed sanction.

****ORDERS****

the aforementioned Company, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of three million euros (€3,000,000.00), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981;

****DISPOSES****

a) the publication of this provision, pursuant to Articles 154-bis of the Code and 37 of Regulation No. 1/2019, as well as the application of the accessory sanction of publication on the website of the Authority of this injunction order, as provided for by Articles 166, paragraph 7 of the Code and 16 of Regulation of the Authority No. 1/2019;

b) the annotation of this provision in the internal register of the Authority - provided for by Article 57, paragraph 1, letter u), of the Regulation, as well as by Article 17 of Regulation No. 1/2019 concerning internal procedures of external relevance, aimed at carrying out the tasks and exercising the powers delegated to the Authority - relating to the violations and measures adopted in accordance with Article 58, paragraph 2, of the Regulation itself.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed with the ordinary judicial authority, with a petition submitted to the ordinary court of the place where the data controller resides, or, alternatively, to the court of the place of residence of the data subject, within thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, April 10, 2025

****THE PRESIDENT****

Stanzione

****THE RAPPORTEUR****

Ghiglia

****THE ACTING SECRETARY GENERAL****

Filippi

1) See, for example, at www.garanteprivacy.it provision of June 15, 2011, web doc No. 1821257; provision of July 9, 2020, web doc No. 9435753; provision of November 12, 2020, web doc No. 9485681; provision of March 25, 2021, web doc No. 9570997; provision of May 13, 2021, web doc No. 9670025; provision of December 16, 2021, web doc No. 9735672; provision of April 11, 2024, web doc No. 1008019; provision of April 11, 2024, web doc No. 1008076; provision of June 6, 2024, web doc No. 10029424.